

Court No. - 37

Case :- WRIT - C No. - 76008 of 2011

Petitioner :- Dinesh Kumar Gupta

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C., Anubhava Shukla

Hon'ble Vineet Saran, J.

Hon'ble Ashok Pal Singh, J.

Sri Subhash Gosai has put in appearance on behalf of the respondents no. 1 and 2 and learned Standing Counsel has accepted notice for the respondents no. 3 and 4.

Issue notice to the respondent no. 5 fixing a date immediately after six weeks.

All the respondents may file counter affidavit by the next date.

The submission of the learned counsel for the petitioner is that the premises in question was rented out by the petitioner to the respondent no. 5 (Awdesh Kumar Singh) and in the checking report itself, it is mentioned that the same was occupied by the respondent no. 5, who was running a coaching centre at the premises.

Learned counsel for the petitioner places reliance on the definition of "Occupier" given in Clause 2.2 (oo) of the U.P. Electricity Supply Code, 2005 whereby it may be the owner or authorized person in occupation of the premises where electricity is used. It is contended that in the present case the authorized person in occupation was the respondent no. 5 and he would alone be liable to payment of electricity dues and other charges. It is thus contended that recovery citation issued against the petitioner for use of electricity at the premises, which was in the occupation of the respondent no. 5 cannot be justified in law.

Considering the facts and circumstances of this case and keeping in view the aforesaid submissions of learned counsel for the petitioner, in our view, the petitioner has made out a prima facie case for the grant of interim protection.

Accordingly, as an interim protection, it is provided that recovery against the petitioner in pursuance of the recovery citation dated 25.11.2011 shall remain stayed.

Order Date :- 23.12.2011

aBHisHek

(Ashok Pal Singh, J.) (Vineet Saran, J.)

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Respondent Counsel :- C.S.C., Anubhava Shukla, Subhash Gosain

Hon'ble Vineet Saran, J.

Hon'ble Ashok Pal Singh, J.

Learned counsel for the petitioner prays for and is allowed a week's and no more time to take steps to serve respondent no. 5.

List thereafter.

Order Date :- 10.2.2012

Sanjeev

(Ashok Pal Singh, J) (Vineet Saran, J)

Court No. - 37

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Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C., Anubhava Shukla, Subhash Gosain

Hon'ble Vineet Saran, J.

Hon'ble Ashok Pal Singh, J.

Steps have already been taken on 16.02.2012.

The case is wrongly listed today.

Order Date :- 21.2.2012

Abhishek Sri.

(Ashok Pal Singh, J.)

(Vineet Saran, J.)

Court No. - 21

Case :- WRIT - C No. - 76008 of 2011

Petitioner :- Dinesh Kumar Gupta

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C., Anubhava Shukla, Subhash Gosain

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

List on 23.03.2023 showing the name of Sri Narendra Kumar Tiwari as counsel for the respondent electricity department.

Counsel for the petitioner shall inform to Sri Narendra Kumar Tiwari about the order passed today in writing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.2.2023

Jaswant

Court No. - 21

Case :- WRIT - C No. - 76008 of 2011

Petitioner :- Dinesh Kumar Gupta

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C., Anubhava Shukla, Subhash Gosain

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

On request made on behalf of Sri N.K. Tiwari, learned counsel for the respondent Electricity Department, the case is passed over.

List on 19.4.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.3.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 76008 of 2011

Petitioner :- Dinesh Kumar Gupta

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C., Anubhava Shukla, Subhash Gosain

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Shri N.K. Tiwari, counsel for the respondent-Electricity Department seeks one week further time to complete his instructions.

List on 02.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.4.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 76008 of 2011

Petitioner :- Dinesh Kumar Gupta

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C., Anubhava Shukla, Subhash Gosain

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed by Shri N.K. Tiwari, learned counsel for respondents no.1 & 2, list on 25.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023

S.P.

Court No. - 21

Case :- WRIT - C No. - 76008 of 2011

Petitioner :- Dinesh Kumar Gupta

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C., Anubhava Shukla, Narendra Kumar
Tiwari, Subhash Gosain

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed, adjourned to 18.07.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.5.2023

Rama Kant



2025:AHC:215069-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 76008 of 2011

Dinesh Kumar Gupta

.....Petitioner(s)

Versus

Purvanchal Vidyut Vitran Nigam Ltd. And Others

.....Respondent(s)

Counsel for Petitioner(s)	: Mayank Agrawal
Counsel for Respondent(s)	: Anubhava Shukla, C.S.C., Narendra Kumar Tiwari, Subhash Gosain

Court No. - 4

**HON'BLE AJIT KUMAR, J.
HON'BLE VIVEK SARAN, J.**

Heard Sri Suraj Giri, learned Advocate holding brief of Sri Mayank Agrawal, learned counsel for the petitioner as well as Sri Rakesh Kumar Mishra, learned Advocate holding brief of Sri Narendra Kumar Tiwari, learned counsel appearing on behalf of the respondent Corporation.

By means of this petition filed under Article 226 of the Constitution, petitioner has prayed for quashing of the recovery notice dated 25.11.2011 and the consequential citation for a sum of Rs. 2,16,287/-.

The submission advanced by learned counsel for the petitioner is that the respondents have proceeded to make provisional/ final assessment at the same time without giving opportunity to the petitioner to file objection to the provisional assessment, if any, and hence the procedure adopted by the respondents is *de-hors* the procedure prescribed under the relevant Act and Rules.

Per contra it is argued on behalf of the respondent Corporation that several opportunities had been given to the petitioner but petitioner failed to avail the same and hence the authority was left with no other option but to pass final assessment order.

Having heard learned counsel for the respective parties and having perused the pleadings, it transpires that the petitioner has been raising objections to the effect that petitioner had already inducted a tenant to the premises of

which he was having electricity meter and hence petitioner was not liable to pay the dues.

Be that as it may, since the electricity meter stands in the name of the petitioner, petitioner is liable to meet the charges. However, since the respondents have themselves admitted in the counter affidavit that the provisional and final assessments are the same, in our considered view after making provisional assessment, the authorities are liable to issue notice to the petitioner/ electricity meter holder to file objection, if any.

In the circumstances, therefore, we consider this final order of assessment as provisional assessment and permit the petitioner to file objections to the same within a period of four weeks from today and if he files objection, the same shall be dealt with by the respondent no. 2 and he shall be making a final decision in the matter within a further period of one month. It is further provided that for a period of two months or till the final decision is taken by the authority concerned, the impugned citation of recovery dated 25.11.2011 shall remain in abeyance and abide by the final decision to be taken by the authority concerned.

With the aforesaid observations and directions, this petition stands **disposed of**.

(Vivek Saran,J.) (Ajit Kumar,J.)

December 1, 2025

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